

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

FRANCISCO SALAZAR,

Petitioner

VS.

CELISSE BERUMEN,

Respondent

) Case Number: FPT-25-378735

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Francisco Salazar (Father) and Respondent Celisse Berumen (Mother) have one minor child together, Frankie (DOB 2/26/2024, age 2).
- 2) On 10/26/2025, Father filed a request for joint legal custody and sole physical custody to Mother, with a step-up parenting schedule for him. He stated he has not seen Frankie since seeing him for one hour on 11/15/2024.
- 3) Mother filed a response seeking sole legal and physical custody with no more than one, one-hour visit for Father every two weeks until he "can prove sobriety and consistency." Mother requested that Father "test negative for alcohol or drugs 12 hours and 1 hour before any visitation time." She stated that Father was physically, verbally, and emotionally abusive during their relationship and engaged in unsafe behavior as a parent.
- 4) At a hearing on 1/29/2026, the Court ordered a weekly one-hour supervised visit for Father at Rally Family Visitation Services (Rally) and scheduled a review hearing for 4/23/2026.

- 1 5) Both parties have filed update declarations stating the Rally visits have not yet begun. Father
2 attaches to his declaration proof of completion of a 4-hour parenting class as well as a certificate
3 relating to an addiction medicine and recovery services class.

4 **B. Findings and Orders**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
6 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
7 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
8 child is the United States.
- 9 2) This matter is continued for three months to **Tuesday, 7/21/2026 at 9:00 AM in Dept. 404** to
10 permit Father to commence his supervised visits at Rally and for the Court to receive information
11 from Rally and the parties as to how the supervised visits are going. 10 days before the 7/21/2026
12 hearing, the parties shall file and serve brief update declarations informing the Court how the
13 visits are going and to set forth any requests for modification of Father's parenting time.
- 14 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TAKASHI KUSUI,

Petitioner

VS.

KAREN FLESHMAN,

Respondent

) Case Number: FDI-14-782683

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: PETITIONER TO COMPLY WITH PROPERTY DIVISION ORDER IN
STIPULATED JUDGMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Takashi Kusui (Father) and Respondent Karen Fleshman (Mother). The parties have two children, Mirai (DOB: 11/26/2007, age 18) and Ryu (DOB: 11/25/2010, age 15). Both parties are self-represented.
- 2) On 11/16/2016, the Court entered a Stipulated Judgment of the parties. Paragraph V(c) and (d) provide in relevant part: "To equalize the division of the community property assets and debts, the petitioner must pay to the respondent the sum of \$15,000 payable as follows: \$7,500 due and payable upon court approval of this stipulated order and the remaining \$7,500 due and payable once Petitioner's sole personal savings account (Citibank, savings account ending in x7311) reaches and maintains a balance equal to or greater than \$100,000 following a period of 90 days. If any payment is not made in full and on time, the entire unpaid balance will become due and collectable."

- 1 3) On 11/26/2025, Mother filed the instant Request for Order. Mother states Father paid her the first
2 installment of \$7,500 in 2016 but has not made the second payment. Mother believes Father's
3 savings account "must have 'reached and maintained a balance equal to or greater than \$100,000
4 following a period of 90 days' as petitioner and his neighbors bought the home he previously
5 lived in 2021 for \$2,250,000 and sold it in 2022 for \$2.4 million. In January 2025 petitioner
6 bought 12096 Breckenridge Rd. in Groveland CA for \$385,000. Therefore, I request that the
7 court order Petitioner to comply." Mother attached no documentation to her Request for Order.
- 8 4) On 1/9/2026, Father filed a Responsive Declaration asking the Court to deny Mother's requested
9 relief. Father states simply: "I have never reached nor maintained a balance equal to or greater
10 than \$100,000 following a period of 90 days in my personal savings account (Citibank, saving
11 account ending in x7311)."
- 12 5) At the prior 1/29/2026 hearing on Mother's 11/26/2025 Request for Order, the Court continued
13 the hearing to 4/23/2026 so the parties could meet with the Volunteer Attorney of the Day to see
14 if they could reach a settlement agreement.
- 15 6) On 4/20/2026, Mother filed a declaration stating, "Father has paid Mother \$7,000... I am
16 submitting this supplemental declaration to request the April 23rd 2026 hearing be taken off the
17 calendar as father has complied."
- 18 7) Per the Proof of Service filed 4/20/2026, Mother mailed her declaration to Father on 4/20/2026.
- 19 8) Father has filed no additional declarations since the prior 1/29/2026 hearing.

20 **B. Findings and Order**

- 21 1) Per request of the moving party, the hearing on Mother's Request for Order filed 11/26/2025 is
22 vacated.
- 23 2) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BLAKE MCCLENDON,

Petitioner

VS.

MICHELLE MCCLENDON,

Respondent

) Case Number: FDI-20-793695

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING; REQUEST FOR ORDER RE: TEMPORARY EMERGENCY ORDER,
CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Blake McClendon (Father) and Respondent Michelle Howell (Mother) have one minor child together, Sonora (DOB 6/17/2020, age 5).
- 2) On 3/27/2026, minor's counsel Ryan Sheets filed an ex parte request for emergency orders granting Mother temporary sole physical custody based on concerns that Father had relapsed on drugs, as evidenced by recent unexplained weight loss, erratic behavior, sleeplessness, and paranoid and delusional statements. Minor's counsel stated in his declaration that he had reached out to Father's attorney, who was unable to get in touch with his client. Minor's counsel declared that when he told Sonora that she might be spending some time with Mother, Sonora was happy, did not express any concern, and did not ask any questions. Mother filed a declaration supporting minor's counsel's request and informed the Court that Father's whereabouts were unknown and that Sonora was doing well in her care.

1 3) On 3/27/2026, the Court granted minor's counsel's request and awarded temporary physical
2 custody of Sonora to Mother pending a hearing on the matter on 4/30/2026, which was advanced
3 to 4/23/2026. The Court ordered that Father shall be entitled to one, three-hour visit per week, to
4 be professionally supervised or supervised by the paternal grandmother. The Court further
5 ordered that Father is not to pick up Sonora from any location including from her school. The ex
6 parte order also provides that Mother may allow Sonora to visit with the paternal grandmother.

7 4) The Court has reviewed and considered Mother's update declaration in which she states that
8 Father's whereabouts remain unknown and that Sonora is happy and doing well in her care.

9 **B. Findings and Orders**

10 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
11 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
12 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
13 child is the United States.

14 2) The Court finds it is in Sonora's best interests to award temporary sole legal and sole physical
15 custody of Sonora to Mother and to maintain the orders set forth in the Court's 3/27/2026 ex parte
16 order.

17 3) If either party wishes to modify the current order, they may file a new request for order with the
18 Court.

19 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMANDA LORRAINE FULFORD,

Petitioner

VS.

DAVID ERNESTO SALGUERO,

Respondent

) Case Number: FDI-22-797070

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY; REQUEST FOR ORDER :
TEMPORARY EMERGENCY ORDER, ENFORCE LAWFUL IDEA PROCEDURES AND
PARENTAL PARTICIPATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Amanda Fulford (Mother) and David Ernesto Salguero (Father) have one minor child together, Gabriel (DOB 11/30/2020, age 5).
- 2) On 1/30/2026, Father filed a request for an order for joint legal custody. On 2/3/2026, he filed an ex parte request to "[e]nforce statutory parental participation requirements under IDEA and temporarily pause further IDEA/IEP assessments or evaluations pending compliance and lawful procedure."
- 3) Mother has filed responsive declarations opposing both requests. She notes the Court issued a Statement of Decision on 11/10/2025 granting her sole legal custody and that Father has not shown that any modification of that order is appropriate.

1 **B. Findings and Orders**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
5 child is the United States.
- 6 2) The Court finds it is in Gabriel's best interest to maintain the current order for sole legal custody
7 to Mother. Accordingly, Father's request for a change in legal custody is denied. Father's ex parte
8 request is also denied.
- 9 3) Father shall continue to have access to Gabriel's medical, dental, and school records.
- 10 4) All prior orders not in conflict with these orders shall remain in full force and effect.
- 11 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

KABIR SINGH SIKAND,

Petitioner

VS.

PREETI HOODA SIKAND,

Respondent

) Case Number: FDI-23-798647

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: SPOUSAL OR PARTNER SUPPORT, & CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

1) Petitioner Kabir Sikand (Father) and Respondent Preeti Sikand (Mother) married on 11/28/2007.

The parties disagree regarding their date of separation. Father contends the parties separated on 11/24/2020, for a marriage of 13 years. Mother contends the parties separated on 9/21/2023, for a marriage of 15 years and 10 months. The parties have one minor child, Kai (DOB: 11/4/2014, age 11). Father is represented by attorney Ana Cazeneuve of DeLacey, Riebel & Shindell LLP.

Mother is represented by attorney Anne Fokstuen.

2) The Court notes that in 2024, both parties filed Requests for Domestic Violence Restraining Order against the other party. However, per the Stipulation and Order filed 6/14/2024, the parties agreed to dismiss their Requests for DVRO without prejudice.

3) On for hearing is Mother's Request for Order filed 1/23/2026 seeking guideline child and temporary spousal support retroactive to the date she filed her Request for Order, as well as an order requiring that all child support add-ons be shared in accordance with Family Code section 4061. Mother further asks the Court to delay any imputation of income to her until August 2026

1 because she is currently taking classes at City College in San Francisco to update her
2 photography skills. Mother states that she is 48 years old and was a homemaker during the
3 parties' marriage. Mother states she has a BFA in New Media and an MFA in photography and
4 she currently works as a blog editor, technical consultant, and website designer for a school in
5 India (for which she is paid \$1,000 per month for 25 hours of work per week). Mother states she
6 has been looking for work, including as a barista, but has been unsuccessful. Mother states she
7 has borrowed \$230,000 from family to pay expenses, including paying \$170,000 in attorney's
8 fees. Mother states she currently receives food stamps. Mother states Father is a successful
9 technology professional earning \$240,000 annually who is in sole possession of the parties' three-
10 story, seven room Queen Anne house in Hayes Valley with a separate in-law apartment that the
11 parties used to rent out to tenants.

- 12 4) On 1/20/2026, Mother filed an Income and Expense Declaration. Mother states her income is
13 \$1,000 per month. Mother states her monthly expenses total \$7,880. Mother states she has \$7,221
14 in cash savings and her other assets are "TBD". Mother states she owes \$21,629 for a car, \$3,598
15 for credit card debt, and \$165,000 for a loan from family and friends. Mother also states their son
16 spends 25% of his time with Mother.
- 17 5) On 2/4/2026 and 2/5/2026, a long-cause hearing was held. Per the Order After Hearing filed
18 2/6/2026, Judge Mori made final custody orders, awarding Father sole physical custody of Kai
19 and awarding joint legal custody of Kai with Father having final tiebreaker decision-making. The
20 order also adopts their parenting coordinator's recommendation for Kai to be in Mother's care
21 every other weekend on Friday at school pick up and drop off on Sunday at 7:30 PM or through
22 Monday at 7:30 PM if there is no school on that Monday, and one day per week on Mondays, and
23 the parties to alternate holidays and school breaks (including week on / week off during summer).
- 24 6) On 4/10/2026, Father filed a Responsive Declaration. Father states he consents to guideline child
25 support but does not consent to pay spousal support. Father states he was previously ordered to
26 pay child and spousal support to Mother (see Findings and Order After Hearing filed 5/23/2024).
27 However, at the hearing on 3/4/2025 (Findings and Order After Hearing filed 4/4/2025), the
28 parties agreed to set support at \$0 due to Father's job loss and the Court ordered both parties to
29 abide by the attached Seek Work Orders. Father states Mother has never provided her compliance

1 with the Seek Work Orders. Father states Mother holds a Bachelor's Degree in Communications
2 in addition to her other stated degrees. Father states the school for which Mother currently works
3 as a blog editor, technical consultant, and website designer is owned by Mother's family, and that
4 Mother previously informed Father that this position was a three-month temporary position.
5 Father states Mother has chosen to work part-time at below-market wages and takes voluntary
6 photography coursework one afternoon per week. Father notes Mother has not provided any proof
7 of enrollment, duration, or how the coursework will add to her existing credentials. Father
8 contends that had Mother complied with the Seek Work Orders issued 13 months ago, she likely
9 would have already secured full-time work at well above minimum wage. Father contends
10 Mother could be earning \$90,000 per year, or \$7,500 per month, and asks the Court to impute this
11 amount to Mother. Father states he began working for HubSpot in December 2025 after one year
12 of unemployment (during which Father states he incurred significant debt). Father states he has
13 made good faith settlement efforts regarding a support amount for Mother.

14 7) On 4/10/2026, Father filed a Memorandum of Points and Authorities.

15 8) On 4/10/2026, Father filed an Income and Expense Declaration. Father agrees that Kai is in
16 Mother's care 25% of the time.

17 9) On 4/16/2026, Mother filed a Reply Declaration. Mother states she is taking Advanced Photoshop
18 and Business Practices in Photography classes that require more than 30+ hours of weekly course
19 work and is walking dogs up to 10 hours weekly earning \$500 per month. Mother states she never
20 studied Communications and does not have a degree in it. Mother notes that Father only offers
21 her weekday visitation times, which impacts her ability to work on weekdays.

22 10) On 4/16/2026, Mother filed an additional Income and Expense Declaration. Mother states her
23 position at the school in India "ended."

24 11) On 4/16/2026, Mother filed a Statement of Support Calculations.

25 12) The Court notes the following upcoming hearing dates:

- 26 a. 5/5/2026 and 5/6/2026 – long-cause hearing on the issue of the parties' date of separation
 - 27 b. 6/1/2026 – Judicial Settlement Conference with Judge Luna
 - 28 c. 8/18/2026 – Family Law Long Cause Trial
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B. Findings and Order

- 1) The Court finds good cause to impute Mother with 25 hours per week of minimum wage income. This amounts to $((\$19.81 \times 25) \times 52) / 12 = \$2,146$ per month. This order is made without prejudice to the Court's ability to impute additional income to Mother at the upcoming 8/18/2026 trial.
- 2) Mother shall continue to comply with the existing Seek Work Order. The Court's jurisdiction to modify child and spousal support retroactive to the date she secures a position of paid employment where she is earning more than \$2,146 per month is reserved.
- 3) Effective 1/23/2026, in accordance with the XSpouse calculation attached hereto and incorporated herein, Father shall pay to Mother \$472 per month in guideline base child support and \$3,427 per month in temporary guideline base spousal support, for total support due and owing of \$3,898 per month.
- 4) Base support for April 2026 shall be paid in full no later than 4/24/2026 at 5 PM.
- 5) The Court finds that Father owes to Mother support arrears in the amount of \$1,006 for the period 1/23/2026 – 1/31/2026 and \$7,796 for the period 2/1/2026 – 3/31/2026, for total support arrears due and owing of \$8,802 for the period 1/23/2026 – 3/31/2026. Commencing 5/15/2026, Father shall pay to Mother an additional \$1,467 by the 15th of each month for 6 months to satisfy these base support arrears.
- 6) Effective 1/23/2026, in addition to base child and temporary spousal support, Father shall pay as additional Smith / Ostler child and temporary spousal support a portion of any and all additional gross income (e.g., bonuses and vested RSUs) received in excess of his base salary of \$20,000 per month, pursuant to the Bonus Table attached hereto and incorporated herein. Smith / Ostler child and spousal support shall be paid to Mother within 10 days of Father receiving the additional income and he shall provide to Mother at the same time as payment documentary evidence showing the amount of additional income received by Father.
- 7) Effective 1/23/2026, the parties shall share 65 (Father) / 35 (Mother) the following child support add-on expenses:
 - a. All childcare costs incurred for employment as defined in Family Code section 4062(a)(1);

- b. All reasonable uninsured healthcare costs for Kai;
- c. All travel expenses incurred by Mother to take Kai to Tahoe for snowboarding team during snowboarding team season.
- 8) The procedure for requesting and paying reimbursement claims for reasonable uninsured healthcare costs shall be as set forth in Judicial Council Form FL-192.
- 9) The procedure for requesting and paying reimbursement claims for qualifying childcare costs, uninsured healthcare costs, and travel expenses incurred by Mother to take Kai to Tahoe during snowboarding team season shall be as follows. When a party (e.g. Party A) pays for a qualifying expense, within 30 days of paying the expense, Party A shall present to Party B: (a) an itemized statement of charges, (b) proof of payment, and (c) the amount due and owing from Party B. Within 10 days of receiving this information, Party B shall submit a payment to Party A for Party B's share of the expense.
- 10) The parties shall meet and confer to determine what Smith / Ostler child and temporary spousal support and what child support add-on reimbursements may be owed for the period 1/23/2026 – 4/30/2026. Father shall pay to Mother a portion of his bonus received in January 2026 for work performed in December 2025 if that bonus was received on or after 1/23/2026. The Court's jurisdiction over these issues is reserved.
- 11) The Court hereby sets a review hearing for **Tuesday, 9/15/2026 at 9:00 AM in Dept. 404** to review child and spousal support, review Mother's compliance with the Seek Work Order, and consider imputing full-time income to Mother. At least 10 calendar days prior to the next hearing date, both parties shall file and serve updated Income and Expense Declarations, Statements of Support Calculations, and update declarations (not to exceed 10 pages, not including exhibits). Mother shall attach to her declaration copies of her Seek Work logs for the period 5/1/2026 – 8/30/2026. The parties shall meet and confer regarding the issues to be heard at least 25 days in advance of the hearing date. If the parties settle their case before the hearing date and / or if their case proceeds to trial on 8/18/2026 on all issues, then the 9/15/2026 hearing date will be vacated.
- 12) Mother's attorney shall prepare the Findings and Order After Hearing, which shall include as an attachment the FL-342 form, the XSpouse calculation, the bonus tables, and an FL-192 form.

1 13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
2 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
3 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
4 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
5 proposed order after hearing directly to the court. Failure to submit the order after hearing within
6 10 days may allow the other party to prepare a proposed order and submit it to the court in
7 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures		Cash Flow	Guideline	Proposed
#of children	1	0	2026				
% time with NCP	0.00 %	25.00 %	GUIDELINE		Comb. net spendable	15959	15959
Filing status	HH/MLA	<-MFS	Nets(adjusted)		Percent change	0%	0%
# exemptions	2	1	Father		Father		
Wages+salary	20000	2146	13902		Payment cost/benefit	-3898	-3898
Self-employed income	0	0	Mother		Net spendable income	10004	10004
Other taxable income	0	0	Total		Change from guideline	0	0
TANF+CS received	0	0	Support		% of combined spendable	63%	63%
Other nontaxable income	0	0	Addons		% of saving over guideline	0%	0%
New spouse income	0	0	Guideln CS		Total taxes	5897	5897
401(k) employee contrib	0	0	S.Clara SS		Dep. exemption value	0	0
Adjustments to income	0	0	Total		# withholding allowances	0	0
SS paid prev marriage	0	0	-		Net wage paycheck	13077	13077
CS paid prev marriage	0	0			Mother		
Health insurance	201	0			Payment cost/benefit	3898	3898
Other medical expense	0	0			Net spendable income	5955	5955
Property tax expense	1487	0	Proposed		Change from guideline	0	0
Ded interest expense	366	0	Tactic 9		% of combined spendable	37%	37%
Charitable contributions	0	0	CS		% of saving over guideline	0%	0%
Misc tax deductions	0	0	472		Total taxes	89	89
Qual bus income ded	0	0	SS		Dep. exemption value	0	0
Required union dues	0	0	Total		# withholding allowances	0	0
Mandatory retirement	0	0	3898		Net wage paycheck	1765	1765
Hardship deduction	0 *	0 *	Saving				
Other GDL deductions	0	0	Releases				
Child care expenses	0	0					

Father pays Guideline CS, Guideline SS, Proposed CS, Proposed SS

FC 4055 checking: ON

Per Child Information								
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS Payor
All children	75 - 25	0	0	0	Father	472	Father	472 Father
	75 - 25	0	0	0	Father	472	Father	472 Father

Annual Bonus Income Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father

Father's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
0	0.00	0	0.00	0	0	0
5,000	3.17	159	21.13	1,057	5,818	42,177
10,000	3.02	302	20.20	2,020	5,961	43,140
15,000	2.96	444	19.89	2,984	6,104	44,104
20,000	2.93	586	19.74	3,949	6,245	45,069
25,000	2.90	726	19.66	4,914	6,386	46,035
30,000	2.89	866	19.60	5,881	6,525	47,001
35,000	2.87	1,005	19.57	6,848	6,664	47,968
40,000	2.86	1,143	19.54	7,816	6,802	48,936
45,000	2.84	1,280	19.52	8,785	6,939	49,905
50,000	2.83	1,416	19.51	9,754	7,076	50,874
55,000	2.81	1,545	19.41	10,675	7,205	51,795
60,000	2.79	1,673	19.31	11,589	7,332	52,709
65,000	2.76	1,797	19.21	12,487	7,457	53,608
70,000	2.74	1,916	19.08	13,353	7,576	54,473
75,000	2.71	2,035	18.96	14,218	7,695	55,339
80,000	2.69	2,154	18.86	15,085	7,813	56,205
85,000	2.67	2,272	18.77	15,951	7,931	57,071
90,000	2.65	2,389	18.69	16,818	8,049	57,938
95,000	2.64	2,506	18.62	17,685	8,166	58,806
100,000	2.62	2,623	18.55	18,553	8,282	59,673
105,000	2.61	2,739	18.50	19,421	8,399	60,541
110,000	2.60	2,855	18.44	20,289	8,515	61,410
115,000	2.58	2,971	18.40	21,158	8,630	62,278
120,000	2.57	3,086	18.36	22,027	8,745	63,147
125,000	2.56	3,201	18.32	22,897	8,860	64,017
130,000	2.55	3,315	18.28	23,766	8,975	64,886
135,000	2.54	3,429	18.25	24,636	9,089	65,756
140,000	2.53	3,543	18.22	25,506	9,203	66,627
145,000	2.52	3,656	18.19	26,377	9,316	67,497
150,000	2.51	3,770	18.17	27,248	9,429	68,368
155,000	2.50	3,882	18.14	28,113	9,541	69,233
160,000	2.50	3,993	18.11	28,971	9,652	70,091
165,000	2.49	4,103	18.08	29,829	9,763	70,949
170,000	2.48	4,214	18.05	30,687	9,873	71,808
175,000	2.47	4,324	18.03	31,546	9,983	72,666
180,000	2.46	4,434	18.00	32,405	10,093	73,525
185,000	2.46	4,543	17.98	33,264	10,203	74,384
190,000	2.45	4,653	17.96	34,123	10,312	75,244
195,000	2.44	4,762	17.94	34,983	10,421	76,103
200,000	2.44	4,871	17.92	35,843	10,530	76,963
205,000	2.43	4,979	17.90	36,703	10,639	77,823
210,000	2.42	5,088	17.89	37,563	10,748	78,683
215,000	2.42	5,196	17.87	38,423	10,856	79,543
220,000	2.41	5,305	17.86	39,285	10,964	80,405

Annual Bonus Income

Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father

Father's Bonus	Child Support		Spousal Support		Total CS	Total SS (adjusted)
	% of bonus	\$	% of bonus	\$		
225,000	2.41	5,413	17.84	40,150	11,072	81,270
230,000	2.40	5,521	17.83	41,014	11,181	82,135
235,000	2.40	5,629	17.82	41,880	11,289	83,000
240,000	2.39	5,737	17.81	42,745	11,397	83,865
245,000	2.39	5,845	17.80	43,610	11,504	84,730
250,000	2.38	5,952	17.79	44,476	11,612	85,596
255,000	2.38	6,059	17.78	45,341	11,719	86,461
260,000	2.37	6,167	17.77	46,207	11,826	87,327
265,000	2.37	6,273	17.76	47,073	11,933	88,193
270,000	2.36	6,369	17.72	47,848	12,029	88,968
275,000	2.35	6,454	17.65	48,537	12,114	89,658
280,000	2.34	6,539	17.58	49,227	12,198	90,347
285,000	2.32	6,624	17.51	49,917	12,283	91,037
290,000	2.31	6,708	17.45	50,607	12,368	91,727
295,000	2.30	6,793	17.39	51,297	12,452	92,417
300,000	2.29	6,876	17.33	51,977	12,536	93,097
305,000	2.28	6,958	17.26	52,650	12,618	93,770
310,000	2.27	7,040	17.20	53,322	12,700	94,442
315,000	2.26	7,122	17.14	53,994	12,782	95,114
320,000	2.25	7,204	17.08	54,667	12,864	95,787
325,000	2.24	7,286	17.03	55,339	12,946	96,459
330,000	2.23	7,369	16.98	56,018	13,028	97,138
335,000	2.22	7,452	16.93	56,701	13,111	97,821
340,000	2.22	7,551	16.92	57,518	13,210	98,638
345,000	2.22	7,655	16.92	58,378	13,315	99,498
350,000	2.22	7,759	16.93	59,238	13,419	100,359
355,000	2.21	7,863	16.93	60,099	13,523	101,219
360,000	2.21	7,967	16.93	60,959	13,627	102,079
365,000	2.21	8,071	16.94	61,820	13,730	102,940
370,000	2.21	8,174	16.94	62,681	13,834	103,801
375,000	2.21	8,278	16.94	63,541	13,938	104,661
380,000	2.21	8,382	16.95	64,402	14,041	105,522
385,000	2.20	8,485	16.95	65,263	14,144	106,383
390,000	2.20	8,588	16.95	66,124	14,248	107,244
395,000	2.20	8,691	16.96	66,985	14,351	108,106
400,000	2.20	8,794	16.96	67,846	14,454	108,966
405,000	2.20	8,895	16.96	68,691	14,555	109,811
410,000	2.19	8,996	16.96	69,535	14,656	110,655
415,000	2.19	9,097	16.96	70,380	14,756	111,500
420,000	2.19	9,198	16.96	71,224	14,857	112,345
425,000	2.19	9,298	16.96	72,069	14,958	113,189
430,000	2.19	9,396	16.95	72,895	15,056	114,015
435,000	2.18	9,493	16.94	73,706	15,152	114,826
440,000	2.18	9,589	16.94	74,517	15,249	115,637
445,000	2.18	9,686	16.93	75,329	15,345	116,449

Annual Bonus Income
Father

- Cost is an increase in support paid or a decrease in support received by this spouse
- Bonus income may reverse direction of CS and/or SS
- R = recipient of support

Annual bonus paid to Mother: 0
Prior relationship(s): OFF

Additional Cost to Father					Total CS	Total SS (adjusted)
Father's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$		
450,000	2.17	9,782	16.92	76,140	15,441	117,260
455,000	2.17	9,878	16.91	76,951	15,537	118,071
460,000	2.17	9,974	16.90	77,763	15,633	118,883
465,000	2.17	10,070	16.90	78,574	15,730	119,694
470,000	2.16	10,166	16.89	79,386	15,825	120,506
475,000	2.16	10,262	16.88	80,197	15,921	121,318
480,000	2.16	10,358	16.88	81,009	16,017	122,129
485,000	2.16	10,453	16.87	81,821	16,113	122,941
490,000	2.15	10,549	16.86	82,633	16,209	123,753
495,000	2.15	10,645	16.86	83,445	16,304	124,565
500,000	2.15	10,740	16.85	84,257	16,400	125,377

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RANDY C. ALMONTE MEDINA,

Petitioner

VS.

GERALDINE AYERDIS,

Respondent

) Case Number: FDI-24-800741

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHILD CUSTODY, VISITATION (PARENTING TIME), SPOUSAL OR
PARTNER SUPPORT, CHILD SUPPORT, ATTORNEY FEES AND COSTS, PROPERTY CONTROL,
AND ALLOCATION OF MINOR CHILDREN AS TAX DEPENDENTS; ORDER COMPELLING
FULL FINANCIAL DISCLOSURE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Randy C. Almonte Medina (Father) and Respondent Geraldine Dionisia Ayerdis
(Mother) married on 8/11/2018. The parties agree they separated on 10/4/2022, for a marriage of
4 years and 1.5 months. The parties have three minor children, Randy (DOB: 12/12/2019, age 6),
Rylan (DOB: 6/18/2021, age 4), and Reagan (DOB: 5/17/2025, age 11 months). Both parties are
self-represented.
- 2) On for hearing is Father's "Supplemental Request for Order" filed 3/2/2026. Father asks the
Court to:
 - a. Award Father parenting time with Randy and Rylan three consecutive weekends each
month beginning at Thursday at 4 PM and ending Monday at 4 PM;

- b. Award Father parenting time with Reagan every weekend that he has the two older children until Reagan is one year old, with visitation beginning Saturday at 9 AM to 5 PM and Sunday from 9 AM to 5 PM;
 - c. Award Father parenting time with Reagan once Reagan is one year old beginning Saturday at 9 AM until Sunday at 5 PM;
 - d. Award Father parenting time with Reagan once Reagan is 1.5 years old according to the same schedule as the parties' two older children;
 - e. Award Father parenting time during the summer from Tuesday at 4 PM until Monday at 10 AM;
 - f. Allow Father to claim the children as dependents for tax purposes or order the parties to alternate claiming the children each year;
 - g. Order Mother to reimburse Father \$7,660 in need-based attorney's fees for fees and costs paid to Father's prior attorney; and
 - h. Order Mother to provide full and complete financial disclosures (Father states Mother has not provided complete tax returns, bank statements, full income information, or information regarding disability payments received while Mother was on maternity leave).
- 3) On 3/27/2026, Mother filed a Responsive Declaration. Mother noted that the Court already made an order at the hearing on 3/19/2026 and set a review hearing on 6/11/2026. Mother asks the Court to:
- a. Allow the parties discretion to make future plans as agreed upon by both parties in writing to allow for some flexibility as time progresses regarding visitation time;
 - b. Deny Father's request to claim the children as dependents because the children are in her care a majority of the time;
 - c. Deny Father's request for attorney's fees and costs; and
 - d. Order Father to provide full financial disclosures, including his bank account in the Dominican Republic, his monthly earnings from his rental property in the Dominican Republic, a statement of all of his Western Union transactions from 2021 to 2025.

1 **B. Findings and Order**

- 2 1) The Court finds it already adjudicated Father's requests related to parenting time at the prior
3 3/19/2026 hearing (see Findings and Order After Hearing filed 4/3/2026), and a review hearing is
4 currently set for 6/11/2026 in Dept. 404. The Court will not make any additional parenting time
5 orders in this order.
- 6 2) Father's request to claim the children as dependents for tax purposes shall be added to the hearing
7 currently scheduled for **Tuesday, 6/16/2026 at 8:30 AM in Dept. 414** in related Case No. FCS-
8 24-357088.
- 9 3) Father's requests for need-based attorney's fees and the parties' requests related to financial
10 disclosures shall be continued to **Tuesday, 5/27/2026 at 1:30 PM in Dept. 414** to be heard by
11 Commissioner Rahim.
- 12 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JILLIAN SAUNDERS,

Petitioner

VS.

MEGAN SAUNDERS,

Respondent

) Case Number: FDI-25-802306

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEYS FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Jillian Saunders and Respondent Megan Saunders married on 1/24/2015. Petitioner states the parties' date of separation is TBD. Respondent states the parties date of separation is 8/17/2025, for a marriage of 10 years and 6 months. The parties have two minor children, Sloane and Harper, both born on 9/11/2016 (age 9). Petitioner is represented by attorney Jennie Vaughn of the Schoenberg Family Law Group. Respondent is represented by attorney Nathaniel Bigger.
- 2) On 12/5/2025, Petitioner filed a Request for Domestic Violence Restraining Order against Respondent in related Case No. FDV-25-818797. Following a two-afternoon long-cause hearing, the Court denied Petitioner's request on 3/18/2026 and consolidated the FDV Case into the FDI Case.
- 3) Now on for hearing is Petitioner's Request for Order filed 1/27/2026 seeking \$45,000 in need-based attorney's fees and costs.
- 4) On 1/27/2026, Petitioner's attorney filed a declaration in support of Petitioner's request for attorney's fees and costs.

- 1 5) On 1/27/2026, Petitioner filed an Income and Expense Declaration. Petitioner lists no income.
2 Petitioner has an Etsy shop where she reports average monthly losses. Petitioner states that her
3 monthly expenses total \$8,622 per month. Petitioner states that she has \$3,000 in cash savings,
4 \$18,556 in easily saleable investments, and \$4,000 per month in personal property. Petitioner
5 reports owing \$40,000 in credit card debt. Petitioner states she has incurred \$14,839 in fees and
6 costs through 1/14/2026 in the FDI matter and has incurred \$12,066 in fees and costs through
7 1/14/2026 in the FDV matter.
- 8 6) On 4/10/2026, Respondent filed a Responsive Declaration. Respondent asks the Court to deny
9 Petitioner's request for attorney's fees. Respondent asks the Court to order Petitioner to reimburse
10 her \$36,000 that Petitioner charged to credit card accounts in Respondent's name (without
11 Respondent's consent) for attorney's fees Petitioner incurred to pursue her unsuccessful
12 restraining order request. Respondent states she has already provided Petitioner with \$37,500 to
13 date (using funds received from an inheritance), which included \$15,000 paid to Petitioner's
14 attorney. Respondent states she cannot afford to make additional contributions to Petitioner's
15 attorney fees. Respondent states her gross monthly income is \$10,800, and she pays Petitioner
16 \$4,320 per month for non-Court-ordered spousal and child support.
- 17 7) On 4/10/2026, Respondent filed a Memorandum of Points and Authorities.
- 18 8) On 4/10/2026, Respondent filed an Income and Expense Declaration. Respondent states she earns
19 \$10,800 in gross per month and \$1,636 per month on average for bonuses. Respondent states her
20 monthly expense total \$10,844, which includes \$7,000 per month for rent for two apartments.
21 Respondent states she has \$11,800 in cash savings, \$32,717 in easily saleable investments, and
22 \$6,800 per month in personal property. Respondent reports a \$23,294 loan for a Tesla and
23 \$49,204 in credit card debt. Respondent states she has paid her attorney \$15,000 to date and still
24 owes \$5,029. Respondent states the children spend 0.1% of their time with Petitioner, but
25 Respondent seeks a 50% timeshare. Respondent states Petitioner has chosen to homeschool the
26 parties' children (who have been diagnosed with autism), but Respondent believes the children
27 would benefit from a more structured educational environment.
- 28 9) On 4/16/2026, Petitioner filed a Reply Declaration, and her attorney filed an additional
29 declaration and Memorandum of Points and Authorities. Petitioner states that Respondent's

1 income is much higher than she claims given her bonuses and equity compensation. Petitioner
2 states that Respondent earns \$16,330 per month in gross income which Petitioner states consist
3 of base pay, HSA contributions, cell phone and internet reimbursements, bonuses, dividends, and
4 RSUs. Petitioner also states that Respondent makes material misstatements regarding how much
5 Respondent gives her per month and what her monthly expenses are. Petitioner's attorney states,
6 "To date, Petitioner has paid SFLG approximately \$65,700 (DV Case: \$34,700; Legal
7 Separation/Disso Case: \$31,000)." Petitioner reiterates her request for \$45,000 in need-based
8 attorney's fees.

9 10) The Court notes that a child support case has been opened, but no child support orders (or
10 temporary spousal support orders) have yet been made.

11 **B. Findings and Order**

12 1) The Court finds that there is a disparity in access to funds to pay legal fees and that Respondent
13 has the ability to make an additional contribution to Petitioner's fees (in addition to the \$15,000
14 Respondent states she has already contributed). No later than 5/1/2026, Respondent shall pay to
15 Petitioner an additional \$15,000, which the Court finds is a just, reasonable, and necessary
16 amount for fees incurred to date and through the conclusion of this FDI case. The Court finds that
17 Respondent does not currently have the ability to contribute more than this amount to Petitioner's
18 fees. In making this fee award, the Court is not awarding to Petitioner any fees or costs Petitioner
19 incurred to pursue her unsuccessful request for DVRO.

20 2) Respondent's request that the Court order Petitioner to reimburse her \$36,000 that Petitioner
21 charged to credit card accounts in Respondent's name for attorney's fees Petitioner incurred to
22 pursue her unsuccessful restraining order request is denied without prejudice as this request is
23 beyond the scope of Petitioner's Request for Order. The Court's jurisdiction over this issue is
24 reserved.

25 3) Petitioner's attorney shall prepare the Findings and Order After Hearing.

26 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
27 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
28 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
29 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the

1 proposed order after hearing directly to the court. Failure to submit the order after hearing within
2 10 days may allow the other party to prepare a proposed order and submit it to the court in
3 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CAROLINA GAMA,

Petitioner

VS.

RASHAD KEVIN THOMAS,

Respondent

) Case Number: FDV-24-817595

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER OF CHILD CUSTODY AND
OR VISITATION CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),
MISCELLANEOUS ORDERS RE CHILD VISITATIONI. SEE ATTACHED.

TENTATIVE RULING

**The parties are ordered to appear at 10am. The parties may appear in person in Department 404 or
remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice
and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

OLENA KATS,

Petitioner

VS.

ARTSIOM KHATKEVICH,

Respondent

) Case Number: FDV-25-818347

) Hearing Date: April 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Olena Kats and Respondent Artsiom Khatkevich previously had a dating relationship. They are not married and do not have any minor children in common.
- 2) Following a long-cause hearing on 9/30/2025 and 12/2/2025, Judge Gold adjudicated the parties' mutual requests for Domestic Violence Restraining Order (Petitioner filed her request for a DVRO on 4/21/2025 and Respondent filed his request for a DVRO on 7/8/2025). Judge Gold denied Respondent's request for a DVRO and granted Petitioner a one-year Restraining Order After Hearing (filed 1/6/2026).
- 3) Now on for hearing is Petitioner's Request for Order filed 3/3/2026 asking the Court to award her \$12,014.42 in attorney's fees and costs under Family Code section 6344. Petitioner attached to her Request for Order a declaration by attorney Ana Voloshko (who Petitioner retained after she had filed her Request for DVRO and who represented Petitioner at the long-cause hearing). Petitioner also attached invoices from her attorney Ana Voloshko for tasks performed between 5/16/2025 and 12/2/2025.

- 1 4) On 3/3/2026, Petitioner filed an Income and Expense Declaration.
- 2 5) On 4/7/2025, Respondent filed a Responsive Declaration asking the Court to deny Petitioner's
- 3 requested orders. Respondent claims that Petitioner's Income and Expense Declaration conceals
- 4 her true income, expenses, and assets. Respondent also argues that Petitioner is not a true
- 5 prevailing party because the Court denied her request to include additional third parties as
- 6 protected parties, to order Respondent to attend a 52-week batterer intervention program, and her
- 7 request for a 5-year restraining order (limiting the restraining order to 12 months). Moreover,
- 8 Respondent states that he prevailed regarding his request that Petitioner be ordered to return a
- 9 mobile phone number to Respondent. Respondent also argues that attorney Ana Voloshko is
- 10 unprofessional, caused delays in the case, and her invoices contain misrepresentations (for
- 11 instance, there are line items for discussions with opposing counsel, when Respondent has not
- 12 been represented by an attorney in this matter) as well as work performed by "KK" "OP" and
- 13 "KS" without explanation regarding who these individuals are. Finally, Respondent argues he has
- 14 no ability to pay attorney's fees and costs and that his business revenue has taken a hit due to
- 15 Petitioner's "defamation." Respondent attached as pg. 233 of his Responsive Declaration an
- 16 Income and Expense Declaration stating that he earns on average \$3,800 per month in net self-
- 17 employment income, pays \$3,697 per month in expenses, and has \$0 in assets and debts.
- 18 Respondent attached a 2025 Schedule C to his Responsive Declaration which shows gross
- 19 income of \$49,135 and expenses of \$15,237.
- 20 6) On 4/14/2026, Petitioner filed a Reply Declaration. Petitioner contends that Respondent is
- 21 misrepresenting is current earnings but provides no evidence to contradict Respondent's
- 22 statements. Petitioner states that the attorney's fees incurred are reasonable in light of multiple
- 23 hearings and trial preparation and that fact that her attorney billed her at a below-market rate.

24 **B. Findings and Order**

- 25 1) Family Code section 6344 states: "(a) After notice and a hearing, a court, upon request, shall
- 26 issue an order for the payment of attorney's fees and costs for a prevailing petitioner... (c) Before
- 27 a court awards attorney's fees and costs pursuant to this section, the court shall first determine
- 28 pursuant to Section 270 that the party ordered to pay has, or is reasonably likely to have, the
- 29 ability to pay."

1 2) The Court finds that Petitioner is the prevailing party with respect to her Request for DVRO. The
2 Court finds that whether Petitioner has the ability to pay her own attorney's fees and costs is
3 irrelevant. The Court is unable to find, based on the evidence presented by Petitioner and
4 Respondent to date, that Respondent has or is reasonably likely to have the ability to make any
5 contribution towards Petitioner's attorney's fees and costs. Petitioner's request is denied without
6 prejudice to a new Request for Order that is supported by evidence that Respondent has the
7 ability to pay the fees requested.

8 3) The Court will prepare the Findings and Order After Hearing.
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